

**Superior Court of the State of California  
County of Orange**

**DEPT C20 TENTATIVE RULINGS**

**Judge Theodore Howard**

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

**COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:**

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

**The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.**

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

**Date: June 11, 2026**

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| 1. | Aguilar v. TKO Farms, Inc.<br>22-1271286 | <p>Before the court is a motion filed by counsel Alison M. Bernal of Nye, Stirling, Hale, Miller &amp; Sweet, LLP (Counsel) to be relieved as counsel of record for defendants TKO Farms, Inc. and Kenneth Dewayne Owen (Defendants).</p> <p>Counsel has substantially complied with the procedural requirements of <i>California Rules of Court</i>, rule 3.1362. While the proof of service shows</p> |

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|    |                                              | <p>a proposed order was served, no proposed order is reflected on the court docket. The court otherwise finds good cause to grant the relief requested on the merits.</p> <p>Counsel is ordered to submit a proposed order forthwith.</p> <p>The order granting relief is effective upon filing of a proof of service of the signed order on the client.</p> <p><i>Counsel to give notice.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 2. | Bank of America, N.A. v. Gorgi<br>25-1478649 | <p>The motion for attorney fees filed by plaintiff Bank of America, N.A. (Plaintiff) is <b>GRANTED</b>.</p> <p>In an action to enforce a contract authorizing an award of fees and costs to one party, the party "prevailing on the contract" is entitled to reasonable fees in accordance with <i>Civil Code section 1717</i>. (<i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 615–617; <i>Exxess Electronixx v. Heger Realty Corp.</i> (1998) 64 Cal.App.4th 698, 706–707.)</p> <p><i>Civil Code section 1717(a)</i> provides that reasonable attorneys' fees shall be fixed by the court and shall be an element of the costs of suit. The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) The court may make its determination of the value of the services rendered without the necessity of expert testimony. (<i>Id.</i> at 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (<i>Id.</i>)</p> <p>Courts apply a lodestar method to calculate reasonable attorneys' fees. (<i>Meister v. U.C. Regents</i> (1998) 67 Cal.App.4th 437, 448-49.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48-49.)</p> <p>With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.)</p> <p>Here, Plaintiff is the prevailing party as the Court granted its motion for summary judgment. Defendants Alireza A. Gorgi and Mehrnaz Farrokhi (collectively, Defendants) do not dispute Plaintiff is the prevailing party. Plaintiff may thus claim reasonable attorney's fees pursuant to the attorneys' fees provision of the subject contract.</p> <p>The Court finds the hourly rates requested reasonable given counsels' experience and the nature of the dispute.</p> |